

23AHCV00170 23AHCV00170

County: los-angeles

Division: Civil Law and Motion

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Motion: DEFENDANT WANG SHUO, M.D.'S DEMURRER AND MOTION TO STRIKE

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Case Number: 23AHCV00170 Hearing Date: September 24, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

FRANCYNE
SAUCEDO, et al.,

Plaintiff(s),

vs.

MONTEREY
PARK HOSPITAL AHMC, et al.,

Defendant(s).

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CASE NO.: 23AHCV00170

[TENTATIVE]

ORDER RE: DEFENDANT WANG SHUO, M.D.'S DEMURRER AND MOTION TO STRIKE

Dept.

3

8:30

a.m.

September

24, 2026

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I.

INTRODUCTION

On January 25, 2023, plaintiff Francyne Carrillo ("Plaintiff"), individually and as successor in interest of Francyne Saucedo ("Saucedo"), filed this action against defendants Monterey Park Hospital AHMC ("Monterey Park Hospital"), AHMC Healthcare Inc. ("AHMC"), Shuo Wang, M.D. ("Defendant", erroneously sued as "Wang Shuo, M.D."), Arthur H. Williams, M.D. ("Dr. Williams"), and Yau Mug Tang, M.D. ("Dr. Tang") (collectively, "Defendants").

Plaintiff alleges that on or about

January 25, 2021, Saucedo was admitted to the hospital's Intensive Care Unit for abdominal pain. (Compl., ¶ 20.) Saucedo was released from the hospital on January 26, 2021, against Plaintiff's wishes, requests, and demands, even though Monterey Park Hospital was given notice that Plaintiff was Saucedo's power of attorney and Plaintiff did not give consent for Saucedo's release. (Compl., ¶¶ 21, 23-24.)

Saucedo subsequently fell into a critical state and taken to LAC + USC Medical Center. (Compl., ¶ 25.) She was pronounced deceased by cardiac arrest on January 27, 2021. (Compl., ¶ 26.) Plaintiff alleges Defendants "performed their treatment so poorly, and nonetheless released [Saucedo] from their care." (Compl., ¶ 27.)

Plaintiff asserts thirteen causes of action, including wrongful death, medical battery, battery, lack of informed consent, breach of fiduciary duty, negligence, medical malpractice, intentional infliction of emotional distress, intentional misrepresentation, negligent misrepresentation, conspiracy to commit fraud, fraud, and fraudulent concealment.

On August 17, 2026, Defendant filed a demurrer and motion to strike. Defendant demurs to all of Plaintiff's causes of action other than the First and Seventh Causes of Action for wrongful death and medical malpractice on the grounds that they fail to state facts sufficient to constitute causes of action and are uncertain. Defendant moves to strike Plaintiff's allegations of oppressive, fraudulent, and malicious conduct as well as Plaintiff's prayer for punitive damages. Defendant additionally moves to strike Plaintiff's request for attorneys' fees.

Both the demurrer and motion to strike are unopposed.

II.

DISCUSSION

A.

Demurrer

California Code of Civil Procedure

section 430.10, subdivision (e), provides that a demurrer is proper where “[t]he pleading does not state facts sufficient to constitute a cause of action.” A demurrer tests not only the sufficiency of the actual allegations in the complaint, but also whether those facts are pleaded with sufficient certainty and particularity. (*Banerian v. O’Malley* (1974) 42 Cal.App.3d 604.) On demurrer, the Court accepts all material facts that are properly pleaded, but does not assume the truth of “contentions, deductions, or conclusions of fact or law.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 72.) The Court may also “disregard any allegations that are contrary to the law or to a fact of which judicial notice may be taken.” (*Leyva v. Nielsen* (2000) 83 Cal.App.4th 1061.)

A demurrer may also be sustained for uncertainty where the complaint is ambiguous and unintelligible such that the defendant cannot reasonably respond. (Code Civ. Proc., § 430.10, subd. (f).) The objection of uncertainty concerns doubt as to what the pleader means by the facts alleged, such that the defendant cannot reasonably determine what issues must be admitted or denied or what claims or causes of action are directed against him. (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454.)

Defendant demurs to all causes of action other than the First Cause of Action for Wrongful Death and the Seventh Cause of Action for Medical Malpractice.

1.

Battery

Claims (Second and Third Causes of Action)

Defendant argues that their demurrer to the Second and Third Causes of Action for Battery and Medical Battery should be sustained because the Complaint fails to specify whether these causes of action are brought on behalf of Saucedo or by Plaintiff in her individual capacity. The Complaint also does not state any facts alleging harmful or offensive contact as required to state a battery claim. (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611.) The Complaint only alleges that Defendants committed medical battery and battery by “poorly treating and . . . releasing [Saucedo] from their care” without Plaintiff’s consent, causing “permanent injuries”. (Compl., ¶¶ 40, 51-52.)

The demurrer to the Second and Third

Causes of Action is therefore SUSTAINED.

2.

Lack

of Informed Consent, Breach of Fiduciary Duty, and Negligence (Fourth through Sixth Causes of Action)

Defendant argues that Plaintiff fails

to state a claim for lack of informed consent because Plaintiff does not identify the particular treatment whose inherent and substantial risks were not disclosed or the treatment allegedly administered that neither of them consented to. (Compl., ¶¶ 61, 68.) Thus, the demurrer to the Fourth Cause of Action is SUSTAINED.

As for the Complaint's Fifth Cause of

Action for Breach of Fiduciary Duty and Sixth Cause of Action for Negligence, Defendant's demurrer is SUSTAINED because the allegations are duplicative of the Seventh Cause of Action for Medical Malpractice. The Fifth and Sixth Causes of Action allege that Defendant "negligently, unprofessionally, and carelessly" treated Saucedo, injured her during treatment, and released her from the hospital. Since duplicative pleading that adds nothing by way of fact or theory is subject to demurrer, Defendant's demurrer to the Fifth and Sixth Causes of Action is SUSTAINED. (Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135.)

3.

Intentional

Infliction of Emotional Distress (Eighth Cause of Action)

To prevail on a claim for intentional

infliction of emotional distress, the plaintiff must prove: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.)

The Complaint fails to allege extreme

and outrageous conduct; it merely repeats claims that Defendant provided substandard medical care. (Compl., ¶ 95.) The Complaint is also uncertain

because the allegations do not specify whether the alleged tortious conduct was directed towards Plaintiff or Saucedo.

Accordingly, the demurrer to the Eighth Cause of Action is SUSTAINED.

Fraud Claims

(Ninth through Thirteenth Causes of Action)

Fraud claims must be pleaded with specificity. (Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 782-783.) The tort of fraud (deceit) requires: "(a) misrepresentation (false representation, concealment, or non-disclosure); (b) knowledge of falsity (or "scienter"); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 32 [citing Lazar v. Superior Court (1996) 12 Cal.4th 631, 638].)

Plaintiff's fraud claims fail because the Complaint alleges that the misrepresentations were made on September 16, 2022, while Saucedo was treated and died in January 2021. The Complaint also fails to state the specific misrepresentations that were made, the speaker who made those misrepresentations, and when or how the misrepresentations were made.

Therefore, the demurrer to the Ninth through Thirteenth Causes of Action is SUSTAINED.

B.

Motion

to Strike

On noticed motion, the Court may strike out any irrelevant, false, or improper matter inserted in a pleading and may strike any pleading or portion thereof that has not been drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Code Civ. Proc., §§ 435-436.) Here, Defendant moves to strike Plaintiff's punitive-damages allegations and attorney-fee request as improper.

Defendant's motion to strike

Plaintiff's prayer for punitive damages and all allegations of oppression, fraud, and malice pursuant to Civil Code section 3294 is GRANTED. Defendant is a medical provider and Plaintiff must first seek leave before pleading a claim for punitive damages. (Code Civ. Proc., § 425.13, subd. (a).)

Defendant's motion to strike

Plaintiff's prayer for attorneys' fees is also GRANTED. The Complaint fails to identify any statute or contract which provides a basis for recovering attorneys' fees.

III.

CONCLUSION

Defendant's demurrer is SUSTAINED in its entirety. As the demurrer is unopposed, the Court declines to grant leave to amend.

Defendant's motion to strike is GRANTED without prejudice to a later noticed motion to add a claim for punitive damages pursuant to Code of Civil Procedure section 425.13.

Defendant to
give notice.

Dated
this 24th
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.